
This act summary is provided for the convenience of the public and members of the General Assembly. It is intended to provide a general summary of the act and may not be exhaustive. It has been prepared by the staff of the Office of Legislative Counsel without input from members of the General Assembly. It is not intended to aid in the interpretation of legislation or to serve as a source of legislative intent.

Act No. 166 (H.941). An act relating to municipal regulation of agriculture

Subjects: Municipal and county government; municipalities; municipal and regional planning and development; municipal regulation of agriculture

This act prohibits municipalities from regulating agricultural activities that are subject to State regulation, with some exceptions for smaller parcels of land and swine waste. Municipalities are also prohibited from regulating the cultivation or other use of land for growing plants, excluding cannabis and hemp. Municipalities may regulate, but not prohibit, the keeping of a poultry flock, excluding roosters and ratites, and must allow the keeping of at least 12 chickens. Finally, this act updates the Agency of Agriculture, Food and Markets' Required Agricultural Practices Rule to conform to changes in statute and makes technical corrections to the Rule.

Effective Date: July 1, 2026